GLOBAL TEENS MODEL UNITED NATIONS 2026

UNITED NATIONS GENERAL ASSEMBLY

OFFICIAL BACKGROUND GUIDE · PLENARY DIRECTIVE

DELIBERATING THE STAGNATION OF DECOLONIZATION IN NON-SELF-GOVERNING TERRITORIES

With Special Emphasis on Strategic Archipelagos, Resource Control, and the Legitimacy of Administrative Powers

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> 🏛 **HOW TO USE THIS GUIDE**
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> This guide is a research foundation, not a position paper. It explains the institutional setting, legal framework, strategic and economic dimensions, and unresolved questions surrounding decolonization. It does not prescribe country positions, speeches, POIs or resolution clauses. Delegates should use the analytical questions to conduct independent, territory-specific research.

The agenda combines several legal regimes that must not be collapsed into one another: the UN Charter framework for Non-Self-Governing Territories (NSGTs), the law of self-determination, the law of the sea, international rules on natural resources, domestic constitutional arrangements, and rules governing military or strategic facilities. A claim may be strong under one regime and still require separate analysis under another.

> ⚠ **CURRENCY & LEGAL TIMELINESS NOTICE**
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> Currency note: the UN's published list identifies 17 NSGTs, but the displayed population figures are drawn from different years and the page states that list data were last updated on 9 May 2024. The Chagos section includes developments through 2026 and distinguishes a signed agreement from one in force. Recheck all current-status material before the conference.

Table of Contents

1. UNGA mandate, organs and procedure — Sec. 1
2. Historical foundations & self-determination — Sec. 2
3. NSGT status & Charter framework — Sec. 3
4. The stagnation problem — Sec. 4
5. Strategic archipelagos & maritime geography — Sec. 5
6. UNCLOS: maritime zones & legal rights — Sec. 6
7. Resource control & economic sovereignty — Sec. 7
8. Legitimacy of administering Powers — Sec. 8
9. International jurisprudence & ICJ — Sec. 9
10. International institutions & comparative cases — Sec. 10
11. Advanced analytical frameworks — Sec. 11
12. Advanced research questions — Sec. 12
13. Research directory & source evaluation — Sec. 13
14. Glossary & final research checklist — Sec. 14
15. Bibliography & primary-source register — Sec. 15



FIGURE 1.1 The General Assembly Hall, UN Headquarters (New York) — Principal deliberative and policymaking organ for global decolonization under Chapter XI.

1. THE UNITED NATIONS GENERAL ASSEMBLY

1.1 Establishment, Composition and Purpose

The United Nations was established in 1945 through the Charter signed at San Francisco. Its creation followed the failure of the League of Nations and the destruction caused by the Second World War. The Charter combines collective security with cooperation in economic, social, humanitarian and human-rights fields. Article 1(2) identifies friendly relations based on equal rights and self-determination of peoples as a UN purpose; Article 2(1) establishes the sovereign equality of Member States.

The General Assembly is the UN's principal deliberative, policymaking and representative organ. Article 9 provides that it consists of all UN Members, each with one vote. Observer states and invited participants may take part under applicable arrangements, but observer status is not equivalent to membership and does not confer a Member's vote.

1.2 Charter Powers and Limits

Articles 10–14 give the Assembly broad authority to discuss matters within the Charter, make recommendations, promote international cooperation and recommend peaceful adjustment. Article 11 addresses international peace and security, subject to Article 12 when the Security Council is exercising its functions. Article 13 authorises studies and recommendations concerning international cooperation and the progressive development and codification of international law. Article 17 concerns the budget; Article 18 governs voting; Article 22 permits subsidiary organs.

The Assembly is not a world legislature with general power to impose binding rules on states. Most substantive resolutions are recommendations. Some Assembly decisions have internal legal effects within the UN system, including budgetary and institutional decisions. A resolution may also evidence or contribute to the development or identification of customary international law when assessed alongside state practice and opinio juris. Its legal weight depends on wording, context, voting pattern and subsequent practice; adoption alone does not turn every resolution into binding law.

1.3 Six Principal Organs

ORGAN	CORE FUNCTION	DECOLONIZATION RELEVANCE
General Assembly	Deliberation, recommendations, budget and subsidiary organs	Adopts decolonization resolutions and considers reports.
Security Council	Primary responsibility for international peace and security	May address security consequences; does not replace Chapter XI.
ECOSOC	Coordinates economic and social work	Addresses development dimensions through its mandate.
International Court of Justice	Principal judicial organ	Clarifies legal questions when jurisdictional requirements are met.

ORGAN	CORE FUNCTION	DECOLONIZATION RELEVANCE
Secretariat	Administrative and substantive support	DPPA's Decolonization Unit supports C-24 and Fourth Committee.
Trusteeship Council	Supervised Trust Territories under Chapters XII–XIII	Its original function has effectively concluded; it does not administer today's NSGTs.

The Trusteeship Council suspended regular operations in 1994 after Palau attained independence. Its Charter provisions remain, but it must not be confused with the Chapter XI framework for NSGTs.

1.4 Main Committees and C-24

The Fourth Committee is the Special Political and Decolonization Committee, one of the General Assembly's six Main Committees. It considers agenda items allocated by the Assembly and prepares recommendations and draft texts for plenary consideration. The Special Committee on Decolonization, or C-24, is a subsidiary organ established by resolution 1654 (XVI) in 1961. It monitors implementation of resolution 1514 (XV), reviews the NSGT list, hears petitioners, conducts visiting missions and regional seminars, and makes recommendations.

C-24 and the Fourth Committee are related but not interchangeable: C-24 performs a continuing specialist monitoring role; the Fourth Committee considers allocated agenda items and prepares recommendations for the plenary. The DPPA Decolonization Unit provides substantive support to both.

1.5 Procedure: UN Rules Versus MUN Conventions

Formal UNGA procedure is governed by the Charter and the Assembly's Rules of Procedure. Model UN conferences often use simplified devices such as moderated caucuses, unmoderated caucuses and points of information. These may be useful simulations but should not be described as exact UNGA rules. Under Article 18, important questions require a two-thirds majority of Members present and voting; other questions are decided by a majority of Members present and voting. Abstentions are not counted as votes cast.

A draft resolution is a proposed text, not a binding instrument merely because it is drafted. Its legal and political effect depends on the Assembly's competence, wording, context and the source of any obligation it refers to.

2. HISTORICAL FOUNDATIONS OF DECOLONIZATION

The UN decolonization framework emerged from the post-1945 international order. Decolonization accelerated through independence movements in Asia, Africa, the Caribbean and the Pacific. Newly independent states changed the composition of the General Assembly and strengthened demands for a universal legal framework against colonial domination.

Decolonization is not simply a flag change. It concerns the political status of a people, authority exercised over a territory, the ability to determine constitutional arrangements, and the relationship between local institutions and external powers. Political independence may coexist with economic dependence; extensive internal autonomy may coexist with unresolved external authority. Neither fact alone answers whether self-determination has been fully exercised.

2.1 Resolution 1514 (XV) — The Decolonization Declaration

General Assembly resolution 1514 (XV), adopted on 14 December 1960, is the Declaration on the Granting of Independence to Colonial Countries and Peoples. It proclaims the necessity of bringing colonialism to an end and affirms that all peoples have the right to self-determination. It states that peoples may freely determine their political status and pursue their economic, social and cultural development. It also addresses territorial integrity and rejects attempts to disrupt national unity.

Resolution 1514 is a General Assembly declaration, not a treaty. Its importance is substantial: it expresses the Assembly's authoritative position during the decolonization period and is relevant to the development and identification of customary international law. The legal status of particular propositions must be assessed through wording, state practice, opinio juris and subsequent judicial treatment. Do not assume that every paragraph of every declaration is automatically binding.

2.2 Resolution 1541 (XV) — The Three Legitimate Outcomes

Resolution 1541 (XV) sets out principles to guide Members in determining whether an obligation exists to transmit information under Article 73(e). Principle VI identifies three outcomes through which an NSGT can attain a full measure of self-government:

- **1. Emergence as a sovereign independent State;**
- **2. Free association with an independent State;** or
- **3. Integration with an independent State.**

The framework demonstrates that decolonization is not legally limited to independence, but an alternative must reflect the freely expressed and genuine wishes of the people. Free association must result from a free and voluntary choice expressed through informed and democratic processes. Integration requires equality of status and rights, with the population consulted through informed and democratic processes. The central question is not simply which constitutional option exists on paper, but whether the people had a genuine opportunity to choose it.

2.3 Resolution 2625 (XXV) — Friendly Relations Declaration

The 1970 Friendly Relations Declaration elaborates principles including sovereign equality, non-use of force, peaceful settlement, non-intervention, cooperation and equal rights and self-determination of peoples. Its language on self-determination must be read as a whole, including the safeguard concerning territorial integrity of states that conduct themselves in compliance with equal rights and self-determination and possess a government representing the whole people without distinction.



FIGURE 2.1 The Special Committee on Decolonization (C-24) — Multilateral forum reviewing implementation of Res 1514 (XV) and annual working papers on Non-Self-Governing Territories.

3. NSGT STATUS AND THE CHARTER FRAMEWORK

3.1 What is an NSGT?

Article 73 applies to territories whose peoples have not attained a full measure of self-government and whose administering Members recognise inhabitants' interests as paramount. The UN's current published list contains 17 NSGTs. It is an institutional decolonization list, not a universal list of every territory with a disputed constitutional or sovereignty status. NSGTs are distributed across the Atlantic and Caribbean, Europe, the Pacific and Africa.

REGION	TERRITORIES ON UN LIST	ADMINISTERING POWER
Africa	Western Sahara	No administering Power identified in list; Spain ended presence in 1976.
Atlantic & Caribbean	Anguilla; Bermuda; British Virgin Islands; Cayman Islands; Falkland Islands (Malvinas); Montserrat; Saint Helena; Turks and Caicos Islands; United States Virgin Islands	United Kingdom (8 territories); United States (US Virgin Islands).
Europe	Gibraltar	United Kingdom.
Pacific	American Samoa; French Polynesia; Guam; New Caledonia; Pitcairn; Tokelau	United States (American Samoa, Guam); France (French Polynesia, New Caledonia); UK (Pitcairn); New Zealand (Tokelau).

The UN list page states that 17 territories remain and that displayed list data were last updated 9 May 2024. Population figures are drawn from different years and should not be treated as synchronized 2026 census figures. The Falkland Islands (Malvinas) entry records a sovereignty dispute between Argentina and the United Kingdom. Western Sahara has a distinct history: Spain notified the UN in 1976 that it had terminated its presence; the General Assembly later reaffirmed that decolonization remained incomplete.

3.2 Chapter XI: Articles 73–74 — The Sacred Trust

Article 73 describes the administration of territories whose peoples have not attained a full measure of self-government as a sacred trust. Administering Members recognise that inhabitants' interests are paramount and undertake to promote political, economic, social and educational advancement; respect culture; ensure just treatment; protect against abuses; develop self-government; take due account of political aspirations; and assist the progressive development of free political institutions.

Article 73(e) asks administering Members to transmit regularly to the Secretary-General statistical and other information of a technical nature relating to economic, social and educational conditions, subject to security and constitutional considerations. Article 74 adds the principle of good-neighbourliness and the interests and well-being of the rest of the world in social, economic and commercial matters.

3.3 Chapters XII–XIII: International Trusteeship System

Chapters XII and XIII establish a separate International Trusteeship System for territories placed under trusteeship agreements. Article 75 establishes the system; Article 76 identifies objectives including international peace and security, political, economic, social and educational advancement, and progressive development towards self-government or independence as appropriate to the circumstances and freely expressed wishes of the peoples. The Trusteeship Council was the supervisory organ. This system is legally distinct from Chapter XI.

The Trusteeship System should not be described as governing all remaining NSGTs. The final Trust Territory, Palau, became independent in 1994, after which the Trusteeship Council suspended regular operations. Chapter XI remains relevant to the 17 territories on the UN list.

3.4 Reporting and Scrutiny Limitations

Article 73(e) is a transparency mechanism, not a complete adjudicative system. Information is transmitted by the administering Power, raising questions about verification, completeness and independent access to local perspectives. C-24, the Fourth Committee, petitioners, visiting missions and civil society can add perspectives, but the UN's capacity to compel information or enforce a particular constitutional outcome is limited.

4. THE STAGNATION OF DECOLONIZATION

Stagnation is not one legal condition. It may arise from institutional delay, political disagreement, constitutional design, economic dependency, strategic interests or unresolved territorial claims. A sound analysis distinguishes the existence of a right from the process through which it is implemented, and distinguishes a legal violation from a political obstacle or lack of institutional capacity.

4.1 Institutional Stagnation

The General Assembly and C-24 can examine, report, recommend and mobilise political pressure. They do not function as a global executive authority with direct control over territorial administrations. Recommendations may be ignored, contested or implemented partially. C-24's monitoring depends on access to territories, cooperation, available information and the political willingness of Member States to sustain attention. This creates a gap between international recognition and the ability to compel a result.

4.2 Political and Constitutional Stagnation

A territory may have elected institutions and substantial internal autonomy while the administering Power retains responsibility for defence, foreign affairs, citizenship, constitutional amendment or appointment of certain officials. The legal question is not answered by counting transferred powers. Examine which powers remain external, whether they can be exercised unilaterally, whether local consent is required, and whether the population has a meaningful route to determine final status.

Political disagreement may concern available options, referendum timing, voter eligibility, displaced or indigenous populations, or whether a proposed arrangement protects all residents. A referendum is not automatically decisive merely because a vote occurred. Its legal significance depends on whether the process was free, informed, inclusive and consistent with the applicable framework.

4.3 Economic Stagnation and Dependency

Small island territories may depend on external budget support, imported goods, tourism, a narrow tax base, transport links and labour mobility. This can make constitutional change economically complex. Dependence is not automatically proof of exploitation or denial of self-determination. The question is whether economic arrangements allow meaningful choice and whether local populations participate in decisions over revenue, public services, investment, land and natural resources.

4.4 Administrative Stagnation

Administrative powers may be distributed across local legislatures, governors, appointed officials, courts, police, ministries and the administering state. The distribution may be established by domestic constitutional instruments, statutes, orders-in-council, treaties or other arrangements. The practical question is where final decision-making authority lies. Local autonomy in some fields may coexist with external reserved powers in others.

4.5 Strategic Stagnation

A territory's location may matter for naval access, air routes, surveillance, communications cables, fisheries, energy routes or military logistics. Strategic value can affect negotiations because an administering Power or

third state may regard continued access as important. However, strategic importance does not itself establish sovereignty, extinguish self-determination or automatically invalidate every defence arrangement. Each claim must be analysed under the relevant territorial, treaty, maritime and self-determination rules.



FIGURE 4.1 Strategic Archipelagos & Maritime Footholds — Intersection of deepwater naval facilities, submarine communications cables, and remote island self-determination.

5. STRATEGIC ARCHIPELAGOS & MARITIME GEOGRAPHY

Archipelagic geography can complicate governance because population centres, ports, administrative institutions and resources may be dispersed over large distances. Atolls and outer islands may have limited infrastructure and be especially exposed to climate change, coastal erosion and transport costs. These features affect political representation, public services, environmental regulation and the ability of local institutions to monitor resource use.

5.1 Strategic Value vs. Legal Title

Strategic archipelagos may sit near sea lanes, chokepoints, undersea cables, naval operating areas or regional air corridors. Their value may include access, logistics, surveillance, search and rescue, maritime domain awareness, fisheries and offshore resources. Strategic value is not a legal title. A military-base agreement, lease or defence arrangement must be analysed separately from sovereignty and self-determination.

5.2 The Chagos Archipelago (Diego Garcia)

The Chagos Archipelago was detached from Mauritius in 1965, before Mauritius became independent in 1968. In its 2019 Advisory Opinion, the ICJ concluded that Mauritius's decolonization had not been lawfully completed when independence was granted because the detachment had not been based on the free and genuine expression of the will of the people of Mauritius. The Court stated that the United Kingdom was under an obligation to bring its administration of the archipelago to an end as rapidly as possible. The General Assembly adopted resolution 73/295 in May 2019.

2025–2026 CHAGOS TREATY STATUS NOTICE

The United Kingdom and Mauritius signed an agreement concerning the Chagos Archipelago, including Diego Garcia, on 22 May 2025. The agreement provides for recognition of Mauritian sovereignty and continued arrangements for the Diego Garcia base. As at 4 November 2026, the UK parliamentary research briefing reports that the treaty had not entered into force: implementing legislation did not complete passage before the 2025–26 session ended, and ratification had been paused pending agreement concerning the base. Recheck before debate.

6. UNCLOS: MARITIME ZONES & LEGAL RIGHTS

The United Nations Convention on the Law of the Sea establishes a comprehensive legal framework for oceans. It regulates maritime zones, navigation, resource rights, marine scientific research and environmental duties. It is essential to distinguish territorial sovereignty from sovereign rights and jurisdiction in maritime zones beyond the territorial sea.

6.1 Territorial Sea and Contiguous Zone

Under UNCLOS Article 2, the sovereignty of a coastal State extends to the territorial sea, its airspace, seabed and subsoil, subject to the Convention and other international law. Article 3 allows a territorial sea breadth of up to 12 nautical miles from lawful baselines. Under Article 33, the contiguous zone may extend up to 24 nautical miles from baselines for specified control necessary to prevent or punish infringements of customs, fiscal, immigration or sanitary laws.

6.2 Exclusive Economic Zone (EEZ)

Articles 55–57 establish the EEZ extending up to 200 nautical miles from baselines. Under Article 56, the coastal State has sovereign rights to explore, exploit, conserve and manage natural resources, and jurisdiction over artificial islands, marine scientific research and protection of the marine environment. Other states retain freedoms including navigation and overflight under Article 58. An EEZ is not sovereign territory; 'sovereign rights' are narrower than sovereignty.



FIGURE 6.1 Maritime Domain & UNCLOS Part V — Modern oceanographic survey vessels operating in the 200nm Exclusive Economic Zone under sovereign resource regimes.

6.3 Continental Shelf & Archipelagic States

Articles 76–85 govern the continental shelf. Article 76 defines the shelf by natural prolongation of land territory to the outer edge of the continental margin, or 200 nautical miles. Article 77 grants exclusive sovereign rights to explore and exploit natural resources of the shelf, existing independently of occupation or proclamation.

Part IV applies to archipelagic States (Article 46: states constituted wholly by one or more archipelagos). An NSGT or overseas territory is not automatically entitled to draw archipelagic baselines as though it were an independent archipelagic State.

7. RESOURCE CONTROL & ECONOMIC SOVEREIGNTY

7.1 Permanent Sovereignty over Natural Resources

General Assembly resolution 1803 (XVII) of 1962 addresses permanent sovereignty over natural resources and links the exercise of sovereignty over natural wealth and resources to national development and the well-being of the people. Its application depends on the status of the territory, the relevant people, the resource, applicable treaties and state conduct.

Resolution 1803 is not a licence to ignore contracts, compensation rules, environmental obligations or other applicable international law. Nor does it mean every foreign resource transaction is unlawful. Analysis must distinguish authority to regulate, ownership of a commercial asset, entitlement to revenue, participation in decisions and environmental duties.

7.2 Resource Governance Matrix

RESOURCE / ASSET	ANALYTICAL QUESTIONS TO INVESTIGATE
Fisheries	Who licenses access? Are catches sustainable? Are local communities consulted? How are fees and benefits distributed?
Offshore Hydrocarbons	Who issues exploration rights? Who receives royalties? What environmental and decommissioning duties apply?
Minerals & Land	Who owns or leases land? Are customary rights recognised? What consultation and compensation processes exist?
Tourism Concessions	Who controls concessions, land use and infrastructure? How much revenue remains locally?
Marine Biodiversity	Who authorises research and access to genetic resources? How are benefits shared?
Ports & Undersea Cables	Who controls strategic infrastructure, security, maintenance and international access?

7.3 Resource Exploitation During Unresolved Decolonization

A difficult question arises where an administering Power authorises exploration or exploitation before a territory's final political status is resolved. Examine whether the activity is consistent with the interests and wishes of the people, applicable self-determination obligations, environmental law, maritime law and contractual rules. Do not assume all activity is prohibited; equally, do not assume administrative control creates an unlimited right to dispose of resources.

For each resource, identify: legal zone; rights-holder; licensing authority; operator; contract; regulator; revenue recipient; affected communities; environmental obligations; dispute forum; and effect on future political choices.

7.4 Economic Dependency

Economic dependency may arise from narrow tax bases, reliance on grants, import dependence, tourism shocks, transport costs, external ownership of infrastructure or limited employment. It can constrain choices, but does not by itself establish that self-determination has been denied. Conversely, formal political autonomy may have limited practical value if a territory lacks the resources or institutional capacity to exercise its powers.

8. LEGITIMACY OF ADMINISTERING POWERS

The agenda's reference to legitimacy requires separation of four concepts: legal title, effective control, domestic constitutional authority and political legitimacy. They may overlap, but are not identical. An administering Power may exercise day-to-day control under domestic law while international bodies continue to examine whether its administration fulfils Article 73 and the people's right to self-determination.

⚖ FOUR FACETS OF LEGITIMACY

1. **Legal Title:** The international legal instrument establishing sovereignty or administrative mandate.
2. **Effective Control:** The factual ability to administer territory, enforce laws, and maintain security.
3. **Domestic Authority:** The internal constitutional framework, acts of parliament, and local legal order.
4. **Democratic Legitimacy:** The freely expressed, genuine, and informed consent of the governed population.

8.1 Legal Basis and Effective Control

The historical basis for administration may include colonial instruments, treaties, post-war arrangements, constitutional orders or later agreements. Historical possession alone does not settle modern legal title. Identify the instrument relied upon, its parties, date, territory and people covered, subsequent changes, applicable international obligations and any judicial or institutional findings.

Effective control describes the factual ability to exercise authority over territory or persons. It can be relevant to attribution and responsibility, but does not automatically establish lawful sovereignty. The 2024 ICJ advisory opinion on the Occupied Palestinian Territory discussed effective control in relation to responsibility while separately addressing the illegality of the continued presence and the right to self-determination. That case concerns occupation, not the NSGT regime, and should be used comparatively.

8.2 Consent and Free Political Choice

A process should be assessed for accurate information, a genuine range of options, freedom from coercion, inclusive participation, fair electoral administration and an opportunity to understand consequences. Questions may arise over who qualifies to vote, particularly where displacement, migration, indigenous status or past forced removal has altered the population. These issues require territory-specific analysis; do not import one universal voter rule.

8.3 Reserved Powers and Local Autonomy

A territory may control education, health, local taxation and municipal government while the administering Power retains defence, foreign affairs, citizenship, constitutional amendment or internal security powers. Local elections alone do not establish that a full measure of self-government has been attained. Equally, the retention of some external functions does not alone determine that self-government is absent. Examine the scope of powers, the ability to alter them, the role of local consent and whether the population has freely chosen the arrangement.

8.4 Accountability Under Article 73

Article 73's 'sacred trust' language makes inhabitants' interests paramount and places duties on administering Members. It does not specify a detailed modern audit procedure for every policy decision. This raises an

implementation question: what information and independent scrutiny are needed to assess whether advancement is genuine and political aspirations are being taken into account? Ground claims in the Charter, resolutions and practice rather than inventing enforcement powers.

9. INTERNATIONAL JURISPRUDENCE

9.1 Western Sahara Advisory Opinion (1975)

The General Assembly asked whether Western Sahara was terra nullius at the time of Spanish colonization and, if not, what legal ties existed with Morocco and the Mauritanian entity. The ICJ answered the first question in the negative. It found certain legal ties of allegiance and rights relating to land, but concluded that the materials did not establish territorial sovereignty ties that would displace self-determination through the free and genuine expression of the will of the people. The opinion is important for distinguishing historical ties from sovereignty.

9.2 East Timor (Portugal v. Australia), 1995

East Timor concerned Portugal's claim that Australia acted unlawfully by concluding a treaty with Indonesia concerning resources in the Timor Gap. The ICJ recognised the erga omnes character of the right of peoples to self-determination, but declined to exercise jurisdiction because doing so would require determining the lawfulness of Indonesia's conduct when Indonesia was not a party and had not consented to the Court's jurisdiction. The case shows that the importance of a substantive right does not remove procedural limits on contentious jurisdiction.

9.3 Chagos Advisory Opinion (2019)

The ICJ concluded that Mauritius's decolonization had not been lawfully completed when it became independent in 1968 because the Chagos Archipelago had been detached in 1965 without the free and genuine expression of the will of the people of Mauritius. The Court stated that the United Kingdom was under an obligation to bring its administration to an end as rapidly as possible and that all UN Members must cooperate with the UN to complete decolonization. The opinion was advisory, not a contentious judgment between two parties, but carries significant legal authority.

9.4 Occupied Palestinian Territory Advisory Opinion (2024)

The Court's 19 July 2024 advisory opinion addressed legal consequences arising from Israel's policies and practices in the Occupied Palestinian Territory, including East Jerusalem, and the legality of its continued presence. It includes analysis of the Palestinian people's right to self-determination and obligations of states and the UN. The territory is not an NSGT under the Chapter XI list; the applicable framework includes occupation law and other rules. Its value here is comparative, not as a direct NSGT precedent.

9.5 Advisory Opinions Versus Contentious Judgments

In contentious cases, the Court decides disputes between states that have consented to its jurisdiction; under Article 59 of the ICJ Statute, a judgment is binding between the parties and in respect of that case. Advisory opinions are given in response to requests by authorised UN organs or specialised agencies on legal questions within their competence. They are not binding in the same way, but carry substantial legal weight and can clarify international law. The General Assembly may request an advisory opinion under Article 96(1) of the Charter.



FIGURE 9.1 The Peace Palace in The Hague — Seat of the International Court of Justice, delivering authoritative advisory opinions and judgments on self-determination and erga omnes norms.

10. INTERNATIONAL INSTITUTIONS & COMPARATIVE CASES

10.1 Specialized Institutional Roles

C-24 monitors implementation of resolution 1514 (XV), reviews the NSGT list, hears representatives and petitioners, and organises visiting missions and regional seminars. The Fourth Committee considers decolonization agenda items and prepares recommendations and draft texts for the plenary. DPPA's Decolonization Unit monitors political, economic and social developments and prepares annual working papers on territories.

The ICJ can clarify legal questions through contentious cases or advisory opinions, but it does not act as a general appellate court over territorial administrations. UNCTAD contributes analysis of trade and investment; UNEP addresses ecological impacts; FAO contributes fisheries expertise; IMO addresses shipping safety; the International Seabed Authority (ISA) governs mineral activities in the Area.

10.2 Comparative Territory Case Studies

TERRITORY	RESEARCH FOCUS	CRITICAL ANALYTICAL CAUTION
New Caledonia	Nouméa Accord, indigenous Kanak claims, referendum processes, constitutional negotiations.	Verify current political developments and voter franchise disputes.
French Polynesia	Return to NSGT list in 2013, vast maritime space, tourism, nuclear-testing legacy.	Legally and politically distinct from New Caledonia's process.
Tokelau	2006 and 2007 self-government referendums; two-thirds threshold not reached.	Do not treat failed referendums as absence of political preferences.
Guam / American Samoa	US constitutional status (unincorporated territory), military presence, citizenship rights.	Different constitutional arrangements and statutory citizenship rules.
Gibraltar	Self-government, sovereignty dispute, population preferences and UN resolutions.	Separate sovereignty claims from the NSGT framework.
Falkland Islands (Malvinas)	UN-listed territory and sovereignty dispute between Argentina and United Kingdom.	UN list expressly records the sovereignty dispute.
Western Sahara	Decolonization, self-determination, competing claims and MINURSO peace process.	No administering Power identified in UN list in same way as others.
Pitcairn & Caribbean NSGTs	Small population, remoteness, fiscal capacity, services and local representation.	Do not assume uniform political goals across Caribbean territories.

For every case, establish: current NSGT classification; constitutional status; administering Power identified by the UN; legal instruments; distribution of legislative, executive, judicial, defence and foreign-affairs powers; local political preferences; economic structure; maritime setting; resource control; and relevant international findings. Avoid forcing every territory into one narrative.

11. ADVANCED ANALYTICAL FRAMEWORKS

11.1 The Legal-Obligation Chain

Develop arguments through five rigorous stages: (1) identify the legal obligation; (2) identify the actor responsible; (3) establish the relevant state practice or administrative conduct; (4) identify the gap between obligation and conduct; (5) explain the legal or institutional consequence. This prevents a delegate from jumping from a political concern directly to a claim of illegality.

11.2 Distinguishing Types of Gaps

GAP CATEGORY	CONCEPTUAL MEANING	DELEGATE RESEARCH TASK
Legal Ambiguity	The rule's meaning or application is genuinely uncertain.	Compare competing interpretations of treaty text and case law.
Implementation Deficit	The obligation is clear but incompletely carried out.	Compare Article 73 commitments with documented practice.
Enforcement Deficit	A breach may be identified but no effective enforcement exists.	Map available international remedies and institutional powers.
Jurisdictional Gap	No single forum or authority can address all elements.	Separate territorial, maritime and personal jurisdiction.
Information Gap	Facts are missing, selective or unverified.	Compare official reports with independent and local evidence.
Political Obstacle	The legal path is known but agreement or political will is absent.	Examine negotiation deadlocks and referendum disputes.

11.3 Four-Part Legitimacy Analysis

Ask four separate questions: (1) legal basis — what instrument or rule authorises administration? (2) effective control — who actually exercises power? (3) performance — are Article 73 and other obligations fulfilled? (4) political legitimacy — can the people genuinely determine status and participate in government? No single factor automatically answers all four.

11.4 Resource-Control Chain

For each resource, map the legal zone, rights-holder, licensing authority, operator, contract, regulator, revenue recipient, affected communities, environmental obligations, dispute forum and effect on future political choices. This prevents confusion between a state having sovereign rights in an EEZ, a company owning equipment, a local government issuing a permit and a population having a right to participate in decisions.

11.5 Maritime-Status Chain

For maritime questions, identify the land territory first; establish who has lawful authority to claim or administer maritime zones; identify the zone; identify the specific right (sovereignty, sovereign rights,

jurisdiction or freedom); then consider delimitation, third-state rights and environmental obligations. Do not begin with an assumed EEZ and work backwards to sovereignty.

12. ADVANCED RESEARCH QUESTIONS

Self-Determination and Constitutional Status

- When does extensive internal autonomy amount to a full measure of self-government under Chapter XI, and who assesses that question?
- How should free association be assessed when the associated state retains defence, citizenship or external-affairs powers?
- What safeguards make a referendum a genuine expression of the people's will?
- How should the UN assess status where residents disagree over the appropriate outcome?
- How should indigenous peoples' rights be considered alongside territorial self-determination and the rights of permanent residents?

Strategic Archipelagos and Maritime Jurisdiction

- Can an administering Power exercise maritime resource rights on behalf of an NSGT, and what constraints arise from Article 73 and self-determination?
- How should maritime entitlements be treated when territorial title or status is disputed?
- Does UNCLOS Part IV apply to an island territory that is not itself an independent archipelagic State?
- How should defence-access arrangements be assessed when the population has not freely determined final status?
- How should fisheries management operate where local capacity is limited and external authorities control licensing?

Resource Sovereignty and Economic Dependency

- What level of local participation is required before major resource concessions are authorised?
- How can future political choices be protected from long-term resource contracts entered into before self-government?
- How should revenue distribution be assessed where an administering Power funds public services but controls resource licensing?
- Can economic dependence constrain practical self-determination without itself constituting a legal denial of the right?
- What duties arise where extraction creates irreversible environmental damage for a small-island population?

Legitimacy and Accountability

- What independent evidence can test whether Article 73(e) reporting is complete and representative?
- How should the UN respond when an administering Power and local representatives disagree over whether self-government is sufficient?
- Can a domestic constitutional instrument authorise conduct inconsistent with international obligations?

- What role should the territorial population have in reviewing defence agreements or major infrastructure concessions?
- Which institution is competent to clarify a disputed legal question, and what are the limits of its jurisdiction?

13. RESEARCH DIRECTORY & SOURCE EVALUATION

Begin with primary sources. A government statement can establish a government's position, but not necessarily the legal correctness of that position. Academic research can explain doctrine, but does not replace treaty text or a court's actual reasoning. News reporting can identify developments, but legal claims should be checked against the relevant instrument, judgment or official record.

SOURCE TYPE	WHAT IT CAN ESTABLISH	CRITICAL ANALYTICAL CAUTION
Treaty	Binding obligations for parties, subject to scope and interpretation.	Check parties, entry into force and reservations.
ICJ Judgment	Binding decision between parties in the specific case.	Article 59 limits binding force to parties and case.
ICJ Advisory Opinion	Authoritative judicial clarification of international law.	Not binding in same manner as contentious judgment.
GA Resolution	Institutional position; may evidence opinio juris or internal decisions.	Not every resolution is binding international law.
Government Statement	Official state position or evidence of practice.	Not independent proof of legal correctness.
Academic Research	Analysis, context and competing interpretations.	Check methodology, date and primary citations.
Media Reporting	Chronology and contemporary political developments.	Verify legal details against primary documents.

14. GLOSSARY & FINAL RESEARCH CHECKLIST

TERM	AUTHORITATIVE LEGAL DEFINITION
Administering Power	A UN Member State with responsibilities for administering an NSGT under Chapter XI.
Archipelagic State	A State constituted wholly by one or more archipelagos, as defined in UNCLOS Article 46.
Customary International Law	A rule arising from general state practice accepted as law (opinio juris).
Decolonization	The process through which a people exercises self-determination and attains a full measure of self-government.
EEZ	An area beyond and adjacent to territorial sea subject to specific legal regime in UNCLOS Part V.
Erga Omnes	An obligation owed to the international community as a whole.

TERM	AUTHORITATIVE LEGAL DEFINITION
Free Association	A status option resulting from free and voluntary choice through informed democratic processes.
NSGT	A territory whose people have not attained a full measure of self-government under UN framework.
Sovereign Rights	Specific rights, such as resource rights in an EEZ or continental shelf, not equivalent to full sovereignty.

📋 FINAL DELEGATE RESEARCH CHECKLIST

✓ Have I confirmed whether the territory is currently on the UN NSGT list?
✓ Have I identified the exact constitutional and administrative instruments?
✓ Have I separated domestic constitutional authority from international obligations?
✓ Have I identified the relevant maritime zone before discussing resources?
✓ Have I distinguished sovereignty from sovereign rights and jurisdiction?
✓ Have I read the actual treaty article, resolution paragraph or judicial finding?
✓ Have I distinguished an ICJ advisory opinion from a contentious judgment?
✓ Have I identified what the General Assembly can recommend and what it cannot enforce?
✓ Have I checked whether a recent treaty is signed, ratified, in force or implemented?
✓ Have I tested my argument against the strongest alternative interpretation?

15. SELECTED BIBLIOGRAPHY & PRIMARY REGISTER

Official United Nations Instruments

- **United Nations.** Charter of the United Nations, 1945 — https://www.un.org/en/about-us/un-charter/full-text
- **United Nations.** Chapter XI: Declaration Regarding Non-Self-Governing Territories, Articles 73–74 — https://www.un.org/about-us/un-charter/chapter-11
- **UN DPPA.** Non-Self-Governing Territories: Official List & Territory Profiles — https://www.un.org/dppa/decolonization/en/nsgt
- **UN DPPA.** Special Committee on Decolonization (C-24): Mandate and Working Papers — https://www.un.org/dppa/decolonization/en/c24/about
- **UN DPPA.** Fourth Committee: Decolonization Agenda & Resolutions — https://www.un.org/dppa/decolonization/en/fourth-committee
- **United Nations.** UN Convention on the Law of the Sea (UNCLOS), Parts II, IV, V, VI, XII — https://www.un.org/Depts/los/convention_agreements/texts/unclos/unclos_e.pdf
- **UN General Assembly.** Resolution 1514 (XV), Declaration on Granting Independence to Colonial Countries and Peoples, 14 Dec 1960.
- **UN General Assembly.** Resolution 1541 (XV), Principles on Article 73(e) Transmission, 15 Dec 1960.
- **UN General Assembly.** Resolution 1654 (XVI), Establishment of the Special Committee on Decolonization, 27 Nov 1961.
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- **UN General Assembly.** Resolution 73/295, Advisory Opinion of ICJ on Legal Consequences of Separation of Chagos, 22 May 2019.

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Governmental & Parliamentary Records

- **UK Foreign, Commonwealth & Development Office.** UK–Mauritius Agreement Concerning Chagos Archipelago, Signed 22 May 2025.
- **UK House of Commons Library.** *International Law and the Chagos Archipelago*, Research Briefing CBP-10512, 8 October 2026.

📌 LEGAL & ACADEMIC DISCLAIMER

This guide is an educational research foundation prepared for delegates participating in Global Teens Model United Nations 2026, and does not constitute formal legal advice. It does not exhaust every territory-specific treaty, constitutional instrument, maritime

claim or domestic legal development. Consult the latest official territory working papers and full primary sources before making country-specific claims.